BAP No. 25-000

UNITED STATES BANKRUPTCY APPELLATE PANEL OF THE TENTH CIRCUIT

IN RE EXAMPLE HOLDINGS, LLC,
Debtor.

JANE DOE,
Appellant,

v.

EXAMPLE TRUSTEE, *et al.*,
Appellees.

Bankr. No. 25-10000, Chapter 7

On Appeal from the United States Bankruptcy Court for the District of Example

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ANSWERING BRIEF OF APPELLEE EXAMPLE TRUSTEE

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SUMMARY OF THE ARGUMENT

The Bankruptcy Court made the findings the statute requires. The valuation evidence was sufficient, and Appellant's objection to the price was heard and rejected on that evidence. The proceeds provision protects Appellant's interest to the extent the Code allows.

ARGUMENT

I. THE VALUATION EVIDENCE SUPPORTS THE SALE FINDING

A. The Bankruptcy Court weighed the broker opinion

The Bankruptcy Court found the broker credible after hearing cross-examination. Credibility determinations are reviewed for clear error. 11 U.S.C. § 363(b) requires a sound business reason for a sale, and the court found one: the equipment was deteriorating and carried storage costs that exceeded its expected net return.

B. The sale was noticed and contested

Appellant received notice of the sale motion and objected. The objection was heard. The court's ruling reflects the evidence and is not an abuse of discretion.

II. THE PROCEEDS PROVISION PROTECTS APPELLANT TO THE EXTENT THE CODE ALLOWS

Appellant asks the Panel to direct that her interest attach to the proceeds with the same validity and priority it had in the equipment. The order already says that.

Any broader remedy would ask the court to override the priority scheme of the Code, which it may not do. See Law v. Siegel.

CONCLUSION

The Trustee asks the Panel to affirm the sale order.

Respectfully submitted,

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November 4, 2026

CERTIFICATE OF COMPLIANCE

1. This brief complies with the type-volume limitation of Fed. R. Bankr. P. 8015(a)(7)(B) because, excluding the parts of the brief exempted by Fed. R. Bankr. P. 8015(g) and 10th Cir. BAP L.R. 8015-1(d), it contains no more than 13,000 words. The brief contains 213 words, as counted by the drafting software.

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2. This brief complies with the typeface requirements of Fed. R. Bankr. P. 8015(a)(5) and 10th Cir. BAP L.R. 8015-1(b) because it has been prepared in a proportionally spaced typeface using Microsoft Word in 14-point Liberation Serif roman type.

/s/ Riley Sample
Attorney for Appellee Example Trustee
Dated: November 4, 2026

STATEMENT OF RELATED CASES

The filer knows of no related case pending before the United States Supreme Court, any United States Court of Appeals, any United States District Court, or the Bankruptcy Appellate Panel.